24SMCV04817 24SMCV04817

County: los-angeles

Division: Civil Law and Motion

Department: 207

Hearing date: 2026-07-01

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TENTATIVE RULING

DEPARTMENT

207

HEARING DATE

July
1, 2026

CASE NUMBER

24SMCV04817

MOTIONS

(1)
Motion for Attorneys’ Fees

(2)
Motion to Strike or Tax Costs

MOVING PARTY

(1)
Plaintiff Raymunda C Gomez

(2) Defendant
American Honda Motor Co., Inc.

OPPOSING PARTY

(1)
Defendant American Honda Motor Co.

(2)
Plaintiff Raymunda C Gomez

MOTION

This case arises from allegations that manufacturer Defendant American Honda Motor Company, Inc. (“Defendant” or “Honda”) leased to Plaintiff Raymunda C Gomez (“Plaintiff”) a defective 2020 Honda Pilot vehicle and failed to repair the defects or replace the vehicle in violation of the Song-Beverly Act.

On October 3, 2024, Plaintiff filed suit against Defendant, alleging five causes of action under the Song-Beverly Act for (1) violation of Civil Code section 1793.2, subd (d); (2) violation of Civil Code section 1793.2, subd. (b); (3) violation of Civil Code section 1793.2, subd. (a)(3); (4) breach of express warranty; and (2) breach of implied warranty of merchantability.

A
Notice of Settlement of Entire Case was filed on February 25, 2026.

On April 8, 2026, Plaintiff
filed a memorandum of costs seeking $727.50.
Defendant has moved to strike or tax Plaintiff’s memorandum of costs,
Plaintiff opposes the motion, and Defendant replies.

Plaintiff has also moved for
attorneys’ fees in the amount of $14,771.50.
Defendant opposes the motion, and Plaintiff replies.

ANALYSIS

Code of Civil Procedure
section 1033.5, which outlines recoverable costs to a prevailing party under

Code of Civil Procedure section 1032, permits the recovery of attorneys' fees when authorized by contract, statute, or law.
(Code Civ. Proc., § 1033.5, subd. (a)(10).)

Civil Code section 1794,
subdivision (d) provides: "If the buyer prevails in an action under this section, the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action."

Defendant does not contest
that Plaintiff is entitled to recover reasonable attorneys' fees, costs, and expenses under the Song-Beverly Act. Instead,
Defendant requests a reduction to fees and costs requested on the grounds that they were excessive and not reasonably incurred.

I.
COSTS

Plaintiff seeks $727.50 in costs, comprised of $534.40 in filing and motion fees, $150 in jury fees, $30.90 for service of process and $12.20 in "other" fees incurred to download the Court's February 3, 2025 Minute Order.

Defendant objects to the $14.23 filing fee for the February 26, 2026 Notice of Settlement, the $150 in jury fees posted, and the $12.20 in "other" costs.

Plaintiff argues in opposition that the memorandum of costs itself is prima facie evidence that the costs were actually incurred, and Defendant has not met its burden to demonstrate that they were not.

a. Filing Fee

Filing and motion fees are allowable, under Code of Civil Procedure section 1033.5, subdivision (b).
Defendant argues that Civil Code section 1794, subdivision (d) only allows filing and motion fees incurred with the "commencement and prosecution" of the action. Therefore, Defendant

argues that filing fee for the notice of settlement is not recoverable
under Song-Beverly.

The Court disagrees. Under
California Rules of Court, rule 3.1385, the plaintiff has an affirmative duty
to inform the Court that the matter has settled. Thus, the Court finds the fee incurred to
make this mandatory filing was reasonably and necessarily incurred.

b. Jury Fees

Defendant argues that because the case has settled, Plaintiff may have
been entitled to a refund of the jury fees by the Court, pursuant to Code of
Civil Procedure section 631.3, subdivision (a), provided that Plaintiff timely
requested it within 20 business days of the date the action was settled and the
settlement was not so close to trial that there was insufficient time to notify
the jurors that the trial would not proceed.
Defendant points out that the settlement occurred long before any jury
was empaneled, and therefore, it should not be responsible for the $150 jury
fee.

Plaintiff points out in opposition, however, that pursuant to Code of
Civil Procedure section 631, subdivision (b), the initial $150 jury fee is
"nonrefundable."

Therefore, the Court finds that Plaintiff is entitled to the requested
$150, which is expressly allowable, pursuant to Code of Civil Procedure section
1033.5, subdivision (b).

c. "Other" Fees

Plaintiff argues that the "other fees" is was a modest litigation
expense tied to monitoring and prosecuting the action. Yet, the Court finds that the "other" fees
incurred to download the Court's February 3, 2025 Minute Order is not expressly
allowable under Code of Civil Procedure section 1033.5, subdivision (b).

II.
ATTORNEYS'
FEES

Plaintiff seeks attorneys' fees in the amount of $14,771.50, representing $10,371.50 in fees already incurred, $2,200 anticipated in connection with the motion for attorneys' fees, and $2,200 anticipated in connection with the motion to tax costs.

Defendant requests a rate reduction, as well as a reduction of the 34 hours sought to a total of 17.5 hours, representing a reduction of about $6,083, on the grounds that 14.3 hours are excessive/unreasonable/unrecoverable; 1.4 hours are insufficiently described client communications and 0.8 hours were insufficiently described.

a. Rates

Plaintiff seeks attorney rates of $440 hourly for Eesha Dalia and $525 for Joshua Fennell for all time sought, dating back to October 2024, even though the Dalia declaration indicates Ms. Dalia's rate was $425 until January 5, 2026 and Mr. Fennell's rate was $510 until it rose to $525 on January 5, 2026.

Plaintiff does not address this argument in reply. Therefore, the Court agrees that the fees should be reduced according to the rates at the time the fees were incurred.

The Dalia declaration indicates that her own rate was $425 per hour until January 5, 2026, when it increased to $440 per hour. Similarly, Johsua Fennell's rate was $510 per hour until January 5, 2026, when it increased to $525 per hour. Further, Bobby C. Walker's hourly rate was $400 per hour until January 4, 2024, when it increased to $415 per hour. It increased again on February 3, 2025 to $430 per hour, and again on January 5, 2026 to $440 per hour.

Accordingly, the 3.6 hours incurred by Mr. Fennell prior to January 5, 2026 are recoupable at the rate of $510 and the 0.6 hours incurred thereafter are recoupable at $525.

The 13.4 hours incurred by Ms. Fennell are recoupable at the rate of $425, and the 2.5 hours incurred thereafter are recoupable at $440.

Finally, the 0.3 hours incurred by Mr. Walker prior to February 3, 2025 are recoupable at $415, and the 1.1 hours incurred after January 5, 2026 are recoupable at $440 per hour. The Court notes that Mr. Walker did not bill any time to this matter between February 3, 2025 and January 5, 2026, when his rate was $430 per hour.

In total, these adjustments reduce the attorneys' fees sought for time already incurred by $817, from $10,371.50 to $9,554.50.

Defendant also argues that the rates should be further reduced, pursuant to Mikhaeilpoor v. BMW of North America, LLC (2020) 48 Cal.App.5th 240, where the court reduced the hourly rates to $350 per hour. However, the Mikhaeilpoor case is six years old, and involved fees that were incurred from 2016 to 2018. When properly adjusted for inflation, the Court finds the fees requested here are in line with those of Mikhaeilpoor. As such, the Court does not find any further reductions to the rates are warranted.

b. Excessive Billing

Defendant argues that about 41% of the total fees requested were or will be incurred in connection with the instant fees and costs motions and should therefore be stricken entirely as excessive.

The billing records indicate Plaintiff's counsel spent a total of 2.1 hours preparing the instant costs and fees filings and that paralegals spent an additional 1.4 hours of time. The Court does not find that time unreasonable.

As for the projected $4,400 to spend on the oppositions/replies/court appearances for the two fees/cost motions, representing 10 hours of attorney time, the Court finds this excessive and reduces it by $2,640 to $1,760, representing four hours of attorney time at the rate of $440 per hour.

c. Insufficiently Described Tasks

Defendants also challenge 1.4 hours, representing $616 for email and telephone communications with the client, the nature of which has been redacted by counsel and 0.8 hours, representing $420 for vague tasks such as "litigation review."

Regarding the client communications, which are attorney-client privileged, given that the timing of those communications is all in the month leading up to the parties' settlement agreement, it is reasonable to assume those communications were settlement related.

And indeed, Plaintiff's counsel confirms as much in reply. Therefore, the Court does not find any reductions warranted to the 1.4 total hours of client communications in the month leading up to the parties' settlement.

Defendant also challenges 0.6 hours of Mr. Fennell's time described as "Attorney Services-Met and conferred with co-counsel regarding case strategy" and 0.2 hours billed for "Attorney Services-Litigation review."

In reply, Plaintiff clarifies that this relatively modest time was spent reviewing the case, lease agreement, pleadings, repair order summary, discovery responses, repurchase calculations, and internal strategy. The Court agrees that this time is relatively modest and, as clarified, was reasonably incurred.

CONCLUSION AND ORDER

Therefore, the Court denies Defendant's motion to tax costs in its entirety and awards Plaintiff's costs in the amount of $ 727.50, as requested.

Further, the Court grants in part Plaintiff's requests for attorneys' fees and awards attorneys' fees in the amount of $11,314.50.

Further, Plaintiff shall lodge a proposed Order in conformity with the ruling on or before July 15, 2026.

Plaintiff shall provide notice of the Court's ruling and file the notice with a proof of service forthwith.

DATED: July 1, 2026 ________/s/___________________

Michael
E. Whitaker

Judge
of the Superior Court